

2017 WL 157195 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Alberto CRUZ, Plaintiff,

v.

CITY OF NEW YORK, New York City Police Department, Detective **Abdiel Anderson**, Shield
1429 of the Narchbx Command and New York City Police Officers John Doe, Defendants.

No. 20076/2017E.
January 4, 2017.

Plaintiff's residence is: 2759 Webster Avenue Bronx, NY 10458

Summons

[Jason A. Steinberger](#), Esq., Law Offices of Jason A. Steinberger, LLC, 505 Eighth Avenue, Suite 701, New York, 10018,
(646) 256-1007, for plaintiff.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: January 4, 2017 New York, NY

Yours etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC

Attorney for Plaintiff

505 Eighth Avenue

Suite 701

New York, NY 10018

(646) 256-1007

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint, alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Alberto Cruz, (hereinafter referred to a “CRUZ”) is resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Detective **Abdiel Anderson**, Shield 1429 of the NARCB BX Command, (hereinafter referred to as “ANDERSON”) was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the police officers involved in CRUZ' arrest, (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.
5. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.
6. On or about November 10, 2015 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.
7. On or about February 25, 2016 a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff's testified and set forth the facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.
8. That on or about October 7, 2015, at approximately 2:00 PM, in the vicinity of 540 Bergen Avenue, Bronx, NY Plaintiff was walking to his bicycle after having shopped for some clothing when ANDERSON and DOES stopped, handcuffed and arrested Plaintiff.
9. That at no time did Plaintiff engage in any criminal or unlawful conduct.
10. That at no time did Plaintiff possess anything of an illegal or unlawful nature.
11. That at no time did Plaintiff sell or assist in the selling of anything of an illegal or unlawful nature.
12. That Plaintiff was then removed to the local Bronx precinct.
13. That while inside of the local Bronx precinct, Plaintiff was placed in a holding cell with other males for several hours.
14. That while inside of the local Bronx precinct, Plaintiff was subjected to a strip search.
15. That after being placed in a cell for several hours, Plaintiff was removed to Central Booking, Bronx County Criminal Court, located at 215 East 161 Street, Bronx, NY.
16. That while inside of Central Booking Plaintiff was forced to remain inside of a holding cell with numerous other men.

17. That on or about October 8, 2015, Plaintiff was arraigned at Bronx County Criminal Court, 215 East 161 Street, Bronx, NY on docket 2015BX048121 charging him with Criminal Sale of a Controlled Substance in the Third Degree.

18. That at the time of the arraignment, Plaintiff was released on his own recognizance and ordered to return to court.

19. That on and between October 8, 2015 through October 13, 2015, Plaintiff made several court appearances until his case was dismissed upon application of the Office of the Bronx District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

20. That Defendants acted with actual malice toward Plaintiff and with willful and wanton

21. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

22. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounter members of the New York City Corrections Department from the day of his arrest and onward.

23. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

24. That as a result of the Defendants' actions, Plaintiff missed several days from work.

25. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

26. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 25, as if more fully stated herein at length.

27. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

28. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully unlawfully seize Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AS AGAINST DEFENDANTS

29. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 28, as if more fully stated herein at length.

30. Defendants conspired to violate Plaintiffs statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AS AGAINST DEFENDANTS

31. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through

30, as if more fully stated herein at length.

32. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and malicious prosecution by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

33. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK

34. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through

33, as if more fully stated herein at length.

35. At all times pertinent hereto, ANDERSON and DOES were acting within the scope of their employment as officers of the New York City Corrections Department and City of New York.

36. The City of New York and New York City Corrections Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that ANDERSON and DOES committed within the scope of his employment.

AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK

37. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. The City of New York and New York City Corrections Department's failure to provide adequate training and supervision to ANDERSON and DOES constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY
OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

39. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 38, as if more fully stated herein at length.

40. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

41. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC

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Attorney for Plaintiff

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